

IN RE: EDWARDS

Case Number: 25CV-0207806

Tentative Ruling on Petition for Change of Name: Petitioner Miranda Lynn Edwards seeks to change her name to Miranda Lynn Edwards Favorite. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

HADLEY, ET AL. VS. AMERICAN HONDA MOTOR CO, INC.

Case Number: 23CV-0201803

Tentative Ruling on Motion for Summary Adjudication: This is a lemon law action filed March 17, 2023. The operative complaint is the First Amended Complaint, filed February 19, 2025. Causes of Action 1-4 fall under the Song-Beverly Act, Cause of Action 5 is for Fraudulent Inducement-Concealment, and Cause of Action 6 is for Violation of the Magnuson-Moss Warranty Act. Defendant seeks summary adjudication of Causes of Action 1-5, only. Plaintiffs oppose the Motion.

Merits of Motion: The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304.

First-Fourth Causes of Action: Plaintiff’s First through Fourth Causes of Action allege violation of California’s Song-Beverly Consumer Warranty Act (“the Act”). California Civil Code §§ 1790 *et seq.* Defendant seeks summary adjudication on these four causes of action on the grounds that Plaintiffs are barred from asserting causes of action under the Act, because the Subject Vehicle, a 2020 Honda Pilot, was purchased from a dealership located in Oregon. Plaintiffs argue that the Act applies, because the vehicle was purchased by Plaintiffs in California.

In *Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, the California Supreme Court held that the Act does not apply unless the vehicle was purchased in California. Here, Defendant’s separate

statement and supporting evidence establishes the following facts. Plaintiffs entered into a Contract to purchase a new 2020 Honda Pilot from Tonkin Gresham Honda in Troutdale, Oregon. (D-UMF 1.) The Contract signed by Plaintiffs states that the law of Oregon applies to the Contract, and any sale hereunder will be governed by the laws of the state of Oregon. (D-UMF 2.) The seller dealership's address as stated in the Contract is: Tonkin Gresham Honda, 24999 SE Stark St., Troutdale, OR 97060. (D-UMF 3.) Defendant has carried its burden to show that there is a complete defense to these four causes of action, by establishing that the Act does not apply to the Plaintiff's purchase of the Subject Vehicle, because it was purchased in Oregon, not California. Because Defendant has carried its burden, the burden shifts to Plaintiffs to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.

Plaintiff's response to Defendant's separate statement and supporting evidence establishes the following facts. Elizabeth Hadley located the Vehicle online at a Portland, Oregon, dealership. The purchase was conducted remotely, over the phone and by email, and the Vehicle was delivered to Plaintiffs in California. Plaintiffs took possession of the Vehicle in California. Plaintiffs never went to Oregon in connection with the purchase of the Vehicle. (Del. Hadley ¶ 7.) Plaintiffs have met their burden of establishing a triable issue of material fact with respect to where the Subject Vehicle was purchased.

In *Davis v. Newmar Corp.* (2006) 136 Cal.App.4th 275, the Second District Court of Appeal addressed the inverse scenario of the present facts. In *Davis*, the Court held that the Song-Beverly Act did not apply to the transaction of a buyer who negotiated the purchase of a new motor home with a retailer in California, but who accepted delivery of the motor home in Nevada. The Court held that the Act applied only to vehicles sold in California, and the buyer's motor home was not sold in California, since title passed outside California. Here, there is a triable issue of material fact regarding where the title to the Subject Vehicle passed. Plaintiffs negotiated the transaction over the phone and online from California, with an out-of-state seller, and took possession of the vehicle in California. In *Davis*, the Court held that the crucial question is where title passed. "Under California law, title to the motor home passed upon delivery—in Nevada. (*California State Electronics Assn. v. Zeos Internat. Ltd.* (1996) 41 Cal.App.4th 1270, 1276–1277, 49 Cal.Rptr.2d 127; *see also* Cal. U. Com.Code, § 2401, subd. (2)(a).) Because title passed outside of California, the Act does not apply. (*California State Electronics Assn. v. Zeos Internat. Ltd.*, *supra*, at pp. 1276–1277, 49 Cal.Rptr.2d 127.)" *Davis v. Newmar Corp.* (2006) 136 Cal. App. 4th 275, 278. Also in *Davis*, the Court noted the importance of the California Tax Board treating the transaction as an out of state purchase in determining where the sale took place. Here, there is no evidence before the Court regarding either where the title passed, or tax treatment of the sale. Plaintiff has carried its burden to show a triable issue regarding whether title passed in Oregon or California. Summary adjudication of the First through Fourth Causes of Action is **DENIED**.

Fifth Cause of Action: Plaintiff's Fifth Cause of Action alleges Fraudulent Inducement-Concealment. The FAC alleges that the 2020 Honda Pilot, including the Subject Vehicle, contain defective "infotainment" systems that cause systems including navigation, audio, and backup camera to malfunction. This causes the system to freeze or crash, which poses a safety risk by distracting the driver and/or causing safety-related systems including the backup camera to fail. (FAC ¶ 45.)

Defendant seeks summary adjudication on the grounds that the cause of action fails as a matter of law, because Plaintiff cannot establish essential elements of a fraud claim. "The required elements

for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]” *Hambrick v. Healthcare Partners Med. Grp., Inc.* (2015) 238 Cal. App. 4th 124, 162.

Defendant’s moving papers argue that the fraud claim is not pled with sufficient particularity, but the sufficiency of the pleadings is not at issue on a Motion for Summary Judgment. Instead, Defendant must show that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Defendant argues that Plaintiffs have alleged a duty to disclose based on Defendant’s exclusive knowledge of the infotainment system defects. Defendant then argues that “Plaintiffs’ references to complaints that were publicly available wholly contradicts Plaintiffs’ conclusory allegations that AHM had exclusive knowledge of them.” (MSA p.6 ln. 6-7.) There is no citation to evidence regarding “Plaintiffs’ references,” and the Court cannot determine what Defendant is referring to.

Defendant’s separate statement and supporting evidence sets forth only four undisputed material facts with respect to the fifth cause of action. In relevant part, they provide that Plaintiffs’ fifth cause of action is for fraudulent inducement-concealment in regards to alleged defects with the “infotainment” system in 2020 Honda Pilot vehicles. (UMF 3.) Plaintiffs’ Complaint does not allege any specific “infotainment” system defect as to Plaintiff’s vehicle. (UMF 4.) These facts only address the sufficiency of pleading the fraud claim, they do not negate any element of the cause of action. As noted above, there is some argument regarding the elements of concealment, duty, and damages in the moving papers, but these elements are not addressed in the separate statement. The Court cannot make assumptions or conjectures regarding what evidence Defendant is setting forth in support of these arguments. *See* CRC Rule 3.1350(d); CCP § 437c(b)(1). Additionally, the Court notes that the First Amended Complaint’s Fifth Cause of Action does allege the Subject Vehicle contained a defective “infotainment system” that cause systems including navigation, audio, and backup camera to malfunction. This causes the system to freeze or crash, which poses a safety risk by distracting the driver and/or causing safety-related systems including the backup camera to fail. (FAC ¶ 45.) Defendant has failed to carry its burden to establish no triable issue of fact remains with respect to the fifth cause of action. Summary adjudication is **DENIED**.

Sixth Cause of Action: The Court notes that Plaintiff raised arguments regarding the Sixth Cause of Action in its Opposition, despite Defendant not seeking summary adjudication of this cause of action in its Motion. Defendants address Plaintiff’s opposition arguments in their Reply brief. The Court declines to rule on the merits of this cause of action, as the Motion for Summary Adjudication did not seek a ruling on it, and the Separate Statement does not include this cause of action or cite supporting evidence.

Defendant’s Motion for Summary Adjudication is **DENIED**. Defendant’s proposed order will be modified to reflect the denial.